

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

TOKUNBO ONILUDE,

Plaintiff,

-against-

THE CITY OF NEW YORK and
NYPD OFFICER ANGEL CRUZ,

Defendants.

----- X

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York

March 5, 2018

SIVIN & MILLER, LLP

By _____

Edward Sivin

Attorneys for Plaintiff

20 Vesey St., Suite 1400

New York, NY 10007

(212) 349-0300

To:

The City of New York, c/o Corporation Counsel, 100 Church Street, New York, NY 10007

NYPD Officer Angel Cruz: c/o NYPD 49th Police Precinct

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X
TOKUNBO ONILUDE,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK and
NYPD OFFICER ANGEL CRUZ,

Defendants.

----- X

Plaintiff, by his attorneys SIVIN & MILLER, LLP, as and for his complaint herein,
alleges as follows, upon information and belief:

1. That at all times herein mentioned, defendant The City of New York (hereinafter “the City”) was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

2. That prior to the institution of this action and within ninety (90) days from the dates when the causes of action accrued herein, a notice of claim and intention to sue was duly served upon and filed with the defendants on behalf of plaintiff; that this action was not commenced until the expiration of thirty (30) days after such notice of claim and intention to sue was presented and the defendants have neglected and/or refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

3. That at all times herein mentioned, the City operated, controlled, managed, and maintained the New York Police Department (hereinafter the “NYPD”).

4. That at all times herein mentioned, defendant NYPD Officer Angel Cruz (hereinafter “Cruz”) was and is an officer employed by the NYPD.

5. That at all times herein mentioned, Cruz was acting within the course and scope

of his employment with the NYPD.

6. That at all times herein mentioned, Cruz was acting under color of state law.

THE FACTS

7. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

8. That on December 13, 2016, in the County of Bronx, City and State of New York, NYPD officers, including but not limited to Cruz (hereinafter referred to collectively as “the officers”), acting jointly and in concert with each another, forcibly stopped and seized plaintiff, pointed guns at plaintiff, forced plaintiff to the ground, and searched plaintiff without consent and without probable cause or reasonable suspicion to believe that plaintiff committed or was about to commit any crime.

9. That thereafter, the officers forcibly detained plaintiff purportedly for the purpose of having a purported crime victim confirm whether plaintiff had been the perpetrator of the crime.

10. That thereafter, plaintiff was told by the officers that the purported crime victim did not identify plaintiff as the perpetrator of the crime, and plaintiff was told by the officers that he was free to leave.

11. That thereafter plaintiff left the scene without incident and without further instructions or directives by the officers.

12. That shortly thereafter plaintiff returned to the scene, whereupon the officers attempted to question him.

13. In response to their inquiries, plaintiff told the officers that he did not want to furnish them with any additional information, and he requested their badge numbers.

14. That in response thereto, the officers, without a warrant and again without probable cause or reasonable suspicion to believe that plaintiff committed or was about to commit any crime, forcibly seized plaintiff, placed him in handcuffs, arrested him, and brought him into a police precinct.

15. That thereafter plaintiff was detained and imprisoned inside a police precinct, and then in Central Booking, against his will and without any legal justification.

16. That on or about December 13, 2016, Cruz initiated and/or caused to be initiated a prosecution of plaintiff in which plaintiff was charged with a crime of which he was innocent and of which Cruz knew plaintiff was innocent.

17. That in support of that prosecution, Cruz executed a Criminal Court Complaint and/or Supporting Deposition in which he made accusations against claimant that he knew were false, including that plaintiff was in possession of a gravity knife and that Cruz tested the knife and determined that it was a gravity knife.

18. That in further support of the criminal prosecution, Cruz knowingly made false statements to the Office of the District Attorney and/or knowingly made false statements that he knew would be conveyed to the District Attorney, including that plaintiff was in possession of a gravity knife and that Cruz tested the knife and determined that it was a gravity knife.

19. That the aforementioned false statements and fabrications by Cruz constituted material evidence in the prosecution of plaintiff, and evidence that was likely to influence a jury's decision on plaintiff's guilt or innocence.

20. That as a result of the false criminal charge that was initiated against plaintiff by Cruz, and the false statements made by Cruz, plaintiff was required to make numerous court appearances and suffered a deprivation of his liberty.

21. That on or about October 17, 2017, plaintiff was granted an adjournment in contemplation of dismissal, with the court indicating that plaintiff's criminal case would be dismissed on April 16, 2018.

22. That defendants' actions were intentional, spiteful, malicious, and without excuse of justification.

23. That defendants' actions were undertaken in a perverted manner to obtain a collateral objective, i.e., to retaliate against plaintiff for his perceived insolence and exercise of his First Amendment right of free speech.

24. That defendants' actions were intended to cause plaintiff severe emotional distress, or at the very least were undertaken in disregard of a substantial possibility of causing plaintiff severe emotional distress.

25. That as a result of the actions of defendants, plaintiff sustained severe emotional distress, endured and will continue to endure pain and suffering and loss of enjoyment of life, incurred and will continue to incur economic loss, and sustained other damages.

FIRST CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Assault and Battery)

26. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

27. That the aforementioned actions of defendants constitute an assault and battery, for which Cruz and the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION AGAINST ALL DEFENDANTS
(False Arrest/Imprisonment)

28. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

29. That the aforementioned actions of defendants constitute a false arrest and false imprisonment of plaintiff, for which Cruz and the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION AGAINST CRUZ AND THE OFFICERS
(42 USC § 1983: Fourth and Fourteenth Amendment Violations)

30. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

31. That the aforementioned actions of Cruz and the officers constitute illegal searches and seizures of plaintiff and deprivation of liberty of plaintiff, in violation of rights guaranteed to plaintiff under the Fourth Amendment and Fourteenth Amendment to the U.S. Constitution, and entitle plaintiff to recover damages pursuant to 42 USC § 1983.

FOURTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
(Intentional Infliction of Emotional Distress)

32. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

33. That the aforementioned actions of Cruz and the officers constitute an intentional infliction of emotional distress, for which Cruz and the officers are liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION AGAINST THE CITY
(Negligent Hiring, Training and Retention)

34. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

35. That the aforesaid incidents and resulting damage to plaintiff were due to the negligence of the City, its agents, servants and/or employees, in the hiring, training and retention of Cruz and the other involved NYPD officers.

SIXTH CAUSE OF ACTION AGAINST THE CITY
("Monell" Claim)

36. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

37. That the aforesaid actions by Cruz and the other NYPD officers were consistent with and in compliance with an authorized pattern and practice of the NYPD whereby persons of color would be stopped, questioned, frisked, detained, arrested, and charged with crimes by NYPD officers without probable cause, without reasonable suspicion, and without justification.

38. That the aforesaid actions by Cruz and the other NYPD officers resulted from a deliberate indifference by the City to a pattern of unconstitutional conduct by Cruz and the other NYPD officers.

SEVENTH CAUSE OF ACTION AGAINST CRUZ
(42 USC § 1983 Claim Based on Denial of Right to Fair Trial)

39. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

40. That the aforesaid actions by Cruz constitute a denial of plaintiff's right to a fair trial, in violation of plaintiff's rights under the Fifth, Sixth and Fourteenth Amendments to

the United States Constitution, and entitle plaintiff to recover monetary damages under 42 U.S.C. § 1983.

EIGHTH CAUSE OF ACTION AGAINST ALL DEFENDANTS CRUZ
(Malicious Abuse of Process)

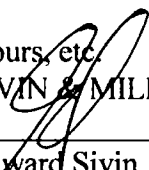
41. Plaintiff repeats and realleges each and every allegation set forth above as though fully set forth at length herein.

42. That the aforesaid actions by Cruz constitute a malicious abuse of process, for which Cruz is liable under New York State law and for which the City is vicariously liable under the doctrine of respondeat superior.

43. That all of the foregoing causes of action fall within one or more of the exceptions set forth in CPLR § 1602 with respect to joint and several liability.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the foregoing causes of action for compensatory damages in an amount that exceeds the jurisdictional limitations of all lower courts that otherwise would have jurisdiction over this matter, and for punitive damages against defendants Cruz, and attorney's fees against all defendants pursuant to 42 USC § 1988, and plaintiff also demands the costs and disbursements of this action.

Dated: New York, New York
March 5, 2018

Yours, etc.
SIVIN & MILLER, LLP
By 
Edward Sivin
Attorneys for plaintiff
20 Vesey St., Suite 1400
New York, NY 10007
(212) 349-0300

VERIFICATION

EDWARD SIVIN, an attorney duly admitted to practice law in the State of New York, hereby affirms the following, under penalty of perjury:

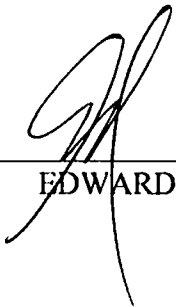
That I am the attorney for the plaintiff(s) in the within action.

That I have read the foregoing complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters I believe it to be true.

That the reason this verification is made by your affirmant and not by the plaintiff(s) is that plaintiff(s) does not reside in the County where your affirmant maintains his office.

That the grounds for your affirmant's belief as to all matters not stated upon my knowledge are as follows: records, reports, facts and documents contained in plaintiff(s) file maintained by your affirmant's office.

Dated: New York, New York
March 5, 2018



EDWARD SIVIN

Index No. Year 2018

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

TOKUNBO ONILUDE

Plaintiff,

-against-

THE CITY OF NEW YORK, et. ano.,

Defendants.

VERIFIED COMPLAINT

SIVIN & MILLER, LLP

Attorneys for Plaintiff

20 Vesey St., Suite 1400

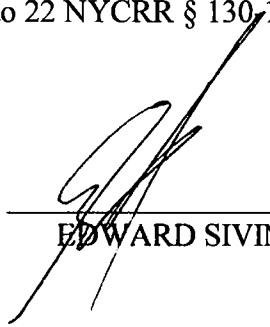
New York, NY 10007

(212) 349-0300

FAX (212) 406-9462

Certification Pursuant to 22 NYCRR §130-1.1a

Edward Sivin hereby certifies that, pursuant to 22 NYCRR § 130-1.1a, the enclosed papers are not frivolous nor frivolously presented.



EDWARD SIVIN

Dated: New York, New York
March 5, 2018